

Terms And Conditions

THESE WEBSITE TERMS AND CONDITIONS ("TERMS OF CONDITIONS") IS AN ELECTRONIC RECORD IN THE FORM OF AN ELECTRONIC CONTRACT FORMED UNDER INFORMATION TECHNOLOGY ACT, 2000 AND RULES MADE THEREUNDER AND THE AMENDED PROVISIONS PERTAINING TO ELECTRONIC DOCUMENTS / RECORDS IN VARIOUS STATUTES AS AMENDED BY THE INFORMATION TECHNOLOGY ACT, 2000. THESE TERMS OF USE DOES NOT REQUIRE ANY PHYSICAL, ELECTRONIC OR DIGITAL SIGNATURE.

This document is published in accordance with the provisions of Rule 3 (1) of the Information Technology (Intermediaries guidelines) Rules, 2011 that require publishing the rules and regulations, privacy policy and Terms of Use for access or usage of domain name "**www.thevaidika.in**" ("Website") and including mobile app.

These terms & Conditions will be effective upon your acceptance of the same (directly or indirectly in electronic form or by means of an electronic record) and legally binding document between user and Vaidika for the use of the website (defined below)

The Website is owned by Vaidika App a proprietor incorporated under the proprietor Act 2008 with its registered office at Kokar Chowk, Ranchi, Jharkhand, IN 834001, India, (hereinafter referred to as "Vaidika").

These Terms and conditions of the website located at the URL **www.thevaidikal.in** (the Website) and mobile application under the name and style "Vaidika" (Mobile App) is between Vaidika (hereinafter referred to as "Vaidika" or "We" or "Us" or "Our") and the guest users or registered users of the Website (hereinafter referred to as "You" or "Your" or "Yourself" or "User") describe the terms on which Vaidika offers You access to the Website and such other services as are incidental and ancillary thereto ("Services").By mere use of the Website (including Mobile App), You shall be contracting with Vaidika and these terms and conditions including the policies constitute Your binding obligations, with Vaidika

ACCESSING, BROWSING OR OTHERWISE USING THE WEBSITE INDICATES YOUR AGREEMENT TO ALL THE TERMS AND CONDITIONS OF THE WEBSITE, SO PLEASE READ THE TERMS AND CONDITIONS CAREFULLY BEFORE PROCEEDING. By impliedly or expressly accepting these Terms of Use, you also accept and agree to be bound by Vaidika

Policies ((including but not limited to Privacy Policy available at Privacy) as amended from time to time.

Vaidika is available only to persons who can form a legally binding contract under the Indian Contract Act, 1872

Your Account and Registration

If You want to avail of the services provided by the Website you have to create an Account with certain required information through log-in ID and password, and You will be responsible for maintaining the confidentiality and security of the Account Information, and are fully responsible for all activities that occur under Your Account and password and for restricting access to your computer to prevent unauthorized access to your account.

Your use of the website indicates that you agree to accept responsibility for all activities that occur under your account or password. Inform us immediately if your account is being or likely to be used in an unauthorized manner.

If you provide any information that is untrue, inaccurate, not current or incomplete or We have reasonable grounds to suspect that such information is untrue, inaccurate, not current or incomplete, or not in accordance with to create a valid contract as per Indian contract Act, We shall have the right to indefinitely suspend or terminate or block access of your membership on the Platform and refuse to provide You with access to the Platform.

The Services are not available to minors under the age of eighteen years. If it is brought to Vaidika's notice or discovered that the User is under the age of 18 years, Vaidika shall terminate User's Account and / or refuse to provide access to the Website. If a minor want transaction the Website, such transaction may be made only by legal guardian or parents.

Your Primary identifiers on the website are mobile number and email id provided by you. It is your responsibility to ensure that your mobile phone number and your email address is up to date on the Platform at all times.

You agree that Vaidika shall not be liable or responsible for the activities or consequences of use or misuse of any information that occurs under your Account in cases, including, where You have failed to update Your revised mobile phone number and/or e-mail address on the Website or if You share or allow others to have access to Your account.

E-Platform for Communication

You agree, understand and acknowledge that the website is an online platform that enables you to purchase products listed on the website at the price indicated therein at any time from any location. You further agree and acknowledge that Amazon is only a facilitator and is not and cannot be a party to or control in any manner any transactions on the website.

Claim against Content

Vaidika lists millions of products for sale offered by sellers on the website and hosts many thousands of comments, it is not possible for us to be aware of the contents of each product listed for sale, or each comment or review that is displayed.

Vaidika does not have any control or does not determine or advise or in any way involve itself in the offering or acceptance of such commercial/contractual terms between the Buyers and Sellers. All discounts, offers (including exchange offers) are by the Seller/Brand and not by Vaidika.

If you believe that any content on the website is illegal, offensive (including but not limited to material that is sexually explicit content or which promotes racism, bigotry, hatred or physical harm), deceptive, misleading, abusive, indecent, harassing, blasphemous, defamatory, libelous, obscene, pornographic, pedophilic or menacing; ethnically objectionable, disparaging; or is otherwise injurious to third parties; or relates to or promotes money laundering or gambling; or is harmful to minors in any way; or impersonates another person; or threatens the unity, integrity, security or sovereignty of India or friendly relations with foreign States; or objectionable or otherwise unlawful in any manner whatsoever; or which consists of or contains software viruses, (" Objectionable Content "), please notify us immediately by following our Notice and Procedure for Making Claims of Right Infringements. Once this procedure has been followed, Vaidika will make all reasonable endeavors to remove such Objectionable Content complained about within a reasonable time.

Placement of order by a Buyer with Seller on the Platform is an offer to buy the product(s) in the order by the Buyer to the Seller and it shall not be construed as Seller's acceptance of Buyer's offer to buy the product(s) ordered. The Seller retains the right to cancel any such order placed by the Buyer, at its sole discretion and the Buyer shall be intimated of the same by way of an email/SMS.

Vaidika is not responsible for breach of any contract entered into between Buyers and Sellers. All commercial/contractual terms are offered by and agreed to between Buyers and Sellers alone. Vaidika does not make any representation or warrant related to price, shipping costs, payment methods, payment terms, date, period and mode of delivery, warranties related to products and services.

Vaidika does not have any control or does not determine or advise or in any way involve itself in the offering or acceptance of such commercial/contractual terms between the Buyers and Sellers.

If there is any conflict between the Terms & Conditions and any other Agreement, the Terms and conditions shall take precedence' but only to the extent of the conflict;

Intellectual Property Claims

All content included on the website, such as text, graphics, logos, button icons, images, audio clips, digital downloads, data compilations, and software, is the property of Vaidika App, its affiliates or its content suppliers and is protected by Indian Law. If you believe that your intellectual property rights have been used in a way that gives rise to concerns of infringement, please notify us our Notice and Procedure for Making Claims of Right Infringements.

Charges/Fees

Vaidika does not charge any fee for browsing and buying on the Website. Vaidika may charge Users certain fees for the use of the Website and Services as a whole, or certain features of the Website / Services. Vaidika reserves the right at its sole discretion to introduce new policy regarding the Fees/Charges for new services offered or even for existing services.

Transaction on Website

For buying the Products on the Website and making payments, you agree to provide correct and accurate financial information, such as credit/debit card details to the approved payment gateway or pre-paid payment instrument account details for availing Services on the Website. You shall not use the credit/debit card or pre-paid payment instrument which is not lawfully owned by You, i.e. in any transaction, you must use Your own credit/debit card or pre-paid instrument account.

The information provided by You will not be utilized or shared with any third party unless required in relation to fraud verifications or by law, regulation or court order or in accordance with the terms of the Privacy Policy. You will be solely responsible for the security and confidentiality of Your credit/debit card details or pre-paid instrument account. Vaidika expressly disclaims all liabilities that may arise as a consequence of any unauthorized use of Your credit/ debit card or pre-paid instrument account.

In addition to the Agreement(s), the terms and conditions of Your bank, applicable financial institution and/or card issuing association may also be applicable to You. Your bank, financial institution or card issuing association may decline or prevent You from making electronic payments for buying the Products on Website and Vaidika does not control the same and shall be liable for the same.

Vaidika and third-party payment service providers enter into contract, to facilitate the payment between buyers and sellers, and with bank to nodal bank account under applicable Indian laws. Third party payment service providers may include third party banking or credit card payment gateways, payment aggregators, pre-paid instruments, cash on delivery or demand draft / pay order on delivery service providers, mobile payment service providers or through any facility as may be authorized by the Reserve Bank of India for collection, refund and remittance, as the case may be of payment or supporting the same in any manner.

Losses

Vaidika shall at no point be responsible for any direct or indirect losses, expenses, costs of any nature whatsoever that may be incurred by any Buyer/Seller or any other indirect or consequential loss that is not reasonably foreseeable to both you and us when you commenced using the website.

Dispute

Dispute is a Disagreement between a Buyer and a Seller in connection with a transaction on the website. Buyer and Seller should attempt to solve the issue to the extent possible. Whenever a Buyer raises a dispute, the Seller's payment for that order is put on hold immediately until the issue is resolved.

If buyer raises disputes against Sellers, Vaidika shall verify whether the dispute is valid and genuine so raised. Raising dispute does not automatically entitle the Buyer to a refund or replacement for the product purchased. Vaidika shall process a refund or replacement, if, your claims are valid and genuine.

Flipkart will actively work towards reaching a resolution

Though the Buyer Protection is a prime responsibility but still Vaidika does not provide any guarantee/warranty to Buyers for products sold on Flipkart against technical/manufacturing defects. Vaidika will try to mediate and resolve the dispute between both the parties.

Buyers can make a maximum of 4 claims per year on Vaidika. Withdrawn claim shall not be counted.

Returns

Please review our Returns Policy, which applies to products sold by us.

Applicable Law

Terms of Use shall be governed by and interpreted and construed in accordance with the laws of India. The place of jurisdiction shall be exclusively in Hazaribag.

Jurisdiction of Sale

The material on the Website is presented solely for the purpose of sale in India.

Registered Seller

For listing of products to sell on website Please refer our Terms to Sell Policy

Limitation of Liability

In no event shall Vaidika be liable for any special, incidental, indirect or consequential damages of any kind in connection with these terms of use, even if user has been informed in advance of the possibility of such damages.

Contact Us

Please contact us for any questions or regarding this Website through the link: <https://www.thevaidika.in/> and reply.vaidikaapp@gmail.com

Grievance officer

For protection of your rights and to comply the provision of The Information Technology Act 2000 and rules made there under and the Consumer Protection (E-Commerce) Rules, 2020, the name and contact details of the Grievance Officer are provided below:

Mrs. Hempushpa Bharti,

Vaidika App.

Kokar Chowk, Ranchi,
Jharkhand, IN 834001,

Phone: +91-9471352463, India